

25STCV23201 25STCV23201

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-10

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Case Number: 25STCV23201 Hearing Date: September 10, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 9, 2026 TRIAL

DATE: March 28, 2028

CASE: Kashani v. Volkswagen Group of America,
Inc., et al.

CASE

NO.: 25STCV23201

MOTIONS TO

COMPEL DISCOVERY RESPONSES

MOVING PARTY/PARTIES: Defendant Volkswagen Group of America, Inc.

RESPONDING PARTY/PARTIES: Plaintiff Elham
R. Kashani

PROOF OF SERVICE:

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Plaintiff addresses the merits of

Defendant's motions, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008)
164 Cal.App.4th 814, 826.)

CASE HISTORY:

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August 7, 2025: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Defendant

Volkswagen Group of America, Inc. ("Defendant") moves to compel responses from Plaintiff Elham R. Kashani ("Plaintiff") to Form Interrogatories, set one ("FROG"); Special

Interrogatories, set one ("SROG"); and Inspection Demand, set one ("RPD"). Defendant also moves to deem admitted matters

specified in Requests for Admissions, set one ("RFA"). After Defendant filed this motion, Plaintiff served supplemental responses to the FROG, SROG and RPD.

As such, the motions to compel responses to the FROG, SROG and RPD are moot except as to sanctions.

The

Court previously considered the motions and, in its order of June 10, 2026, continued the motions to this date. After the Court continued the motions, Plaintiff served supplemental responses to the RFA. The motion to deem admitted is therefore moot except as to sanctions.

TENTATIVE RULING:

Defendant's

motions to compel discovery responses are GRANTED as to sanctions in the amount of \$1,820.

Moving

party to give notice.

DISCUSSION:

Defendant served the FROG, SROG, RPD, and RFA on Plaintiff on December 19, 2025 by email. Plaintiff's responses were thus due by

January 21, 2026. Plaintiff failed to respond to the discovery by that date.

On January 29, 2026, Plaintiff served responses to the discovery, which consist only of objections. However, as Plaintiff failed to timely respond, Plaintiff waived all objections to the FROG, SROG, RPD, and RFA. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a), 2033.280, subd. (a).) Accordingly, Plaintiff's January 29, 2026 responses were the equivalent of no responses. Accordingly, Plaintiff failed to serve responses to the discovery until after Defendant filed these motions.

In opposition, Plaintiff argues that the Court should relieve Plaintiff of Plaintiff's waiver of objections to the FROG and RFA. Plaintiff cannot seek affirmative relief in opposition to Defendant's motion. If Plaintiff sought relief from the waiver of Plaintiff's objections to the discovery, Plaintiff was required to proceed via noticed motion. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a), 2033.280, subd. (a).)

Defendant seeks sanctions in connection with the motions.

The Court finds that Plaintiff's failure to timely respond to the discovery was an abuse of the discovery process, and imposes sanctions. The Court imposes sanctions against Plaintiff and Plaintiff's counsel of record, Strategic Legal Practices, APC, jointly and severally, in the amount of \$1,820, which represents four hours of attorney time to prepare the motions and attend the hearing at \$395 per hour, plus four filing fees. Plaintiff and Plaintiff's counsel of record are to pay sanctions in the amount of \$1,820 to Defendant, by and through counsel, within 30 days of notice of this order.

Moving party to give notice.

IT
IS SO ORDERED.

Dated: September 9, 2026 _____

Rolf

M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.